

24VECV03990 24VECV03990

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 24VECV03990 Hearing Date: August 21, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

CHRISTINA

ARRESEIGOR; JUAN GARCIA VELAZQUEZ,

Plaintiff,

vs.

LOS

ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY; GLORIA JEFFERSON; CITY
OF LOS ANGELES; COUNTY OF LOS ANGELES; STATE OF CALIFORNIA; DOES 1 TO 25,

Defendants.

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CASE NO.: 24VECV03990

ORDER

GRANTING PETITIONER'S PETITION FOR DISABLED PERSON'S COMPROMISE

I.

BACKGROUND

Plaintiffs Christina

Arreseigor ("Arreseigor") and Juan Garcia Velazquez ("Velazquez") (jointly, "Plaintiffs") filed this personal injury action against Defendants Los Angeles County Metropolitan Transportation Authority ("LACMTA"), Gloria Jefferson ("Jefferson"), City of Los Angeles ("City"), County of Los Angeles ("County"),

and State of California ("State"). Plaintiffs allege Jefferson was the bus driver of the Orange Bus Line that collided with Arreseigor, a pedestrian crossing the street. Plaintiffs allege Defendants LACMTA, City, County, and State own or control the Orange Line Busway.

Velazquez, as guardian ad litem for Arreseigor, filed the instant Petition for Disabled Person's Compromise.

II. PROCEDURAL HISTORY

On August 21, 2024, Plaintiffs filed a Complaint alleging (1) Motor Vehicle tort, (2) Negligence, (3) Premises Liability, and (4) Loss of Consortium.

On January 8, 2025, LACMTA filed an Answer.

On March 6, 2025, the Court ordered Velazquez appointed guardian ad litem of Arreseigor.

On March 11, 2025, Plaintiffs dismissed Velazquez from the Complaint.

On December 4, 2025, Arreseigor dismissed City, County, and State.

On January 5, 2026, Arreseigor filed a Notice of Settlement.

On July 30, 2026, Velazquez filed the instant Petition on behalf of Arreseigor.

As of August 18, 2026, no opposition has been filed.

III.

LEGAL STANDARD

An

enforceable settlement of a minor's or disabled person's claim requires court approval. (See Prob. Code §§ 2504, 3500, 3600 et seq.; Code Civ. Proc. § 372.) [1] Probate

Code § 3600, et seq., governs how the settlement proceeds are to be paid. Pursuant to Probate Code § 3601, the order shall approve payment of reasonable expenses from the settlement as follows:¿

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or person with a disability.

(See Prob. Code, § 3601(a).)¿

In

cases pursuant to Probate Code § 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (See Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (See id., rule 7.955(a)(2).)

There

are several nonexclusive factors a court may consider in determining a reasonable attorney's fee. (See id., rule 7.955(b).) Rule 7.955(c) requires a petition requesting court approval and allowance of an

attorney's fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

"In any case

in which the court orders that funds to be received by a minor or a person with a disability must be deposited in a financial institution and not disbursed without further order of the court, the order must include a provision that a certified or filed endorsed copy of the order must be delivered to a manager at the financial institution where the funds are to be deposited, and that a receipt from the financial institution must be promptly filed with the court, acknowledging receipt of both the funds deposited and the order for deposit of funds." (See id., rule 7.953(a).)

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IV.

ANALYSIS

Velazquez ("Petitioner"),

as guardian ad litem for Arreseigor ("Claimant"), filed the instant Petition for Disabled Person's Compromise. Claimant is an adult with a disability. Petitioner has agreed to settle Claimant's claims for \$200,000. (See Pet., ¶ 10, Attach. 10c.) Claimant sustained injuries, which she has not fully recovered from. She remains unresponsive in a coma on life support since the date of the subject incident. (See id., ¶¶ 6, 8(a), Attach. 8c.)

If approved, \$59,763.83

will be used for medical expenses (see id., ¶¶ 12b(1), 12b(4), Attach. 12b(4)(c)), \$70,000.00 will be used for attorney's fees (see id., ¶ 13a), and \$5,547.36 will be used for costs. (See id., ¶ 13b.) This would leave a balance of \$64,688.81 for Claimant to be deposited in an insured account at Bank of America Financial Center, 333 S. Hope Street, Suite 100 Los Angeles, CA 90071, subject to withdrawal only on authorization of the Court. (See id., ¶¶ 16, 18(b)(2), Attach. 18(b)(2)).)

Claimant's

counsel, Christopher K. Dickson, requests attorney fees of \$70,000. This comprises

35% of the settlement amount. (See Attach. 13(a), 17(a).) Counsel estimates his firm spent over 200 hours on this case including conducting discovery and reviewing a high volume of medical records, developing Claimant's optimal theories on liability, and participating in mediation. (See id.)

The

Petition appears to set forth information that bears upon the reasonableness of the compromise pursuant to Rules of Court, rule 7.950. The Court finds the requested attorney's fees are reasonable. This case settled a little over one year after it commenced and involved about 200 hours of attorney time, which the Court finds to be a reasonable amount of time given the totality of the circumstances. The Court finds the 35% fee is thus proportionate to the value of the services performed. (See Rules of Court, rule 7.955(b).)

Given the medical status of the Claimant, the Court will only require attendance at the hearing by the Petitioner to grant the petition. (See Rules of Court, rule 7.952(a).) Additionally, Petitioner filed a proposed order on Form MC-351 and Order to Deposit Money into Blocked Account on Form MC-355 for Claimant, both of which the Court will grant upon granting of the instant Petition.

Thus, the

Court GRANTS Petitioner's Petition for Disabled Person's Compromise.

V.

CONCLUSION

Based on the foregoing, the Court GRANTS Petitioner's Petition for Disabled Person's Compromise. The Court will sign the proposed order on Form MC-351 and Form MC-355 filed with this Petition.

The Court

sets an Order to Show Cause Re: Proof of deposit/purchase of annuity for September 21, 2026. (See Rules of Court, Rule 7.953(a).) If an acknowledgement of receipt by the financial institution is filed before that date, no appearance will be required.

IT

IS SO ORDERED.

DATED: August 21, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.